

13	30-2022-01254056	Motion for Protective Order Defendants Ethan Logan, Moreno Valley Gateway, LLC, MVG Turnpike, LLC, Statewide Ministorage/Barstow, LLC, and Statewide Ministorage/Meniffee, LLC’s Motion for a Protective Order is GRANTED. Pursuant to CCP § 2031.060, “[t]he court, for good cause shown, may make any order that justice requires to protect any party, deponent, or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” (Code Civ. Proc., § 2031.060(b)(5).) This includes orders that: “a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only to specified persons or only in a specified way.” (Ibid.) CCP § 2017.020 provides that: “The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person. The burden is on the party seeking the protective order to show “good cause” for whatever order is sought. (<i>Fairmont Ins. Co. v. Sup. Ct.</i> (2000) 22 Cal.4th 245, 255; <i>Stadish v. Super. Ct.</i> (1999) 71 Cal.App.4th 1130, 1145.) “The concept of good cause . . . calls for a factual exposition of a reasonable ground for the sought order.” (<i>Goodman v. Citizens Life & Cas. Ins. Co.</i> (1967) 253 Cal.App.2d 807, 819.) Proof on the question of good cause is presented through declarations and counter-declarations. (<i>Greyhound Corp. v. Super. Ct.</i> (1961) 56 Cal.2d 355, 389.) The issuance and formulation of protective orders are to a large extent discretionary in evaluating and balancing the interests of the parties and the public when determining whether there is good cause for a protective order and defining the scope of any protective order. (<i>Raymond Handling Concepts Corp. v. Sup. Ct.</i> (1995) 39 Cal.App.4th 584, 588, 591). Defendant Ethan Logan has been previously ordered to produce certain confidential financial by this Court.
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	Article I, Section 1 of the California Constitution declares that the right to privacy is “inalienable.” This provision as well as Section 2031.060, separately or in concert, have led appellate courts of California to approve various protective orders for financial information. (See <i>G.T. Inc v. Superior Court</i> (1984) 151 Cal.App.3d 748, 752.) When an individual’s right of privacy in his financial affairs conflicts with the public need for discovery in litigation, the competing interests must be carefully balanced. (<i>Valley Bank of Nevada v. Superior Court</i> (1975) 15 Cal. 3d 652, 657.) Defendants submit the declaration of counsel, Laura Petrie, and argue that a protective order is necessary for the following reasons: • The protective order sought is intended to limit the use and disclosure of information, testimony, and documents produced or provided in this case to this case only and to prevent disclosure to third parties and litigants engaged in other litigation with Defendants. (Petrie Decl., ¶ 3.) • The “other litigation” is entitled <i>Damian Collins v. Garfield Langmuir-Logan, Ethan Logan, Moreno Valley Gateway, LLC, and MVG Turnpike, LLC</i>, Case No. 30-2019-01092238-CU-PO-CJC (“Collins Case”), pending before Judge Strickroth. That case involves mostly breach of contract claims, but there are also causes of action for breach of fiduciary duty, aiding and abetting breach of fiduciary duty, and a fraud cause of action against some of the same defendants in this case. (Id. at ¶ 4.) • Counsel for Plaintiff Damian Collins in the Collins Case are Dan Harrison and Wilfred M. (“Mike”) Wright of Berger Harrison APC. (Id. at ¶ 5.) [Berger Harrison APC was also the counsel for former party Plaintiff Nicholas Sanders.] • Plaintiff also previously obtained a Judgment against Garfield Logan in Case No. 30-2011-00468519-PR-TR-CJC (“Judgment Case”). Sanders has been conducting collection work in an effort to collect the judgment, including a seeking the debtor exam and production of documents from Garfield, and issuance of subpoenas for documents and depositions to every one of Defendants herein (as well as numerous other entities). (Id. at ¶¶ 7, 8.) • Because of Mr. Berger’s stated belief that he could share any documents with Mr. Harrison or Mr. Wright,
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